

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

September 24, 2012

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Collins moved to approve Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on September 10, 2012. Motion (per Consent Agenda) carried.

Mr. Brown and Mr. Valdez each declared a conflict of interest (business interest in vouchers payable to Ameri-Tech HVAC Services and Radio Station KYOY FM respectively) and vacated Council Chambers. Mr. Spiker moved to approve payment of vouchers as presented, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown and Mr. Valdez returned to Council Chambers.

Mayor Kaysen opened a public meeting for the purpose of receiving public comment regarding the intent of the City of Cheyenne to submit an application for funding to the Wyoming Business Council's Business Ready Community, Business Committed Grant Program, to assist Microsoft in establishing a low-impact, renewable energy project in Cheyenne. Cindy Schneider, Grants Manager, advised the purpose of the grant request, which is \$1.5 million, is to provide infrastructure to facilitate the Microsoft Data Plant Demonstration Project to be located at the Board of Public Utilities (BOPU) Dry Creek Water Reclamation Facility. She stated the project is a public-private partnership and, if the grant is awarded, it will pay for 20% of the estimated \$7.6 million project and that the City is not being asked to fund any of the project. Ms. Schneider referenced an affiliated resolution on the meeting agenda which will be reviewed at the Oct. 1st Finance Committee meeting with anticipated resolution action taken at the Oct. 8th City Council meeting. Anja Bendel, Development Director for Cheyenne LEADS, clarified that the project is not related to Microsoft's data center project being constructed west of the City, and provided additional project information, advising that Microsoft is exploring opportunities to reduce their carbon footprint by using renewable resources for its data centers. She noted project participants who are entering into a memorandum of understanding related to the project are: Microsoft Corp., FuelCell Energy, Inc., BOPU, Cheyenne LEADS, Western Research Institute, Wyoming Business Council, Cheyenne Light, Fuel and Power and the University of Wyoming. She stated the fuel cell that will be installed will use methane produced from the biodigester to generate

electricity to run the data server, and that at the end of the demonstration project time frame (i.e. 18 months), the parties involved will determine the viability of continuing the project. There being no further comments and purpose of the hearing having been met, Mayor Kaysen closed the hearing.

ORDINANCE - Amending, repealing, and creating certain sections of Chapter 10.52, Stopping, Standing, and Parking Generally, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming, relating to the Parking of Recreational Vehicles and Trailers. The following individuals spoke in reference to the ordinance: Mike Rosenthal, Steven Miller, Frank Cole, Paige Smith, Mike Schulte, Ed Melko, John Palmer, Tom Zachary and Jeannine Stallings. Topics presented and discussed included: Community health, safety and welfare issues relative to timely emergency vehicle response access; concerns with allowing an indefinite parking time frame and limiting public access generally to rights-of-way; parking of recreational vehicles (RVs) and trailers elsewhere than on streets; 10 ft. street width minimum concerns; reservations that approving the ordinance will lead to future on-street parking restrictions; whether the City will be painting curbs to designate the required 30 ft. setback from intersections; authority of City Engineer pertaining to allowable or restricted parking pursuant to other sections of City Code; parking distance concerns involving the 30 ft. setback and space limitations for residents to park in front of their own property; pedestrian and driver safety concerns at intersections, and ordinance enforcement. During discussion, information was provided concerning provisions contained in a proposed substitute ordinance. Upon inquiry, Nathan Beauheim, Assistant City Engineer, stated it would be the City's intent to paint curbs delineating intersection 30 ft. setback areas in the Avenues due to the high volume of vehicles parking in the area during Frontier Days. Reporting for Public Services Committee, Ms. Ash moved to approve on third and final reading, seconded by Ms. Broyles. Ms. Ash moved to amend by substitute ordinance (dated 9-18-12), seconded by Ms. Broyles. Upon inquiry, Dan White, City Attorney, reviewed changes contained in the proposed substitute, stating the principal change was language regarding the parking of RVs and trailers on the street directly in front of or adjacent to the property owned or occupied by the owner of the RV or trailer, and confirmed there were no changes proposed to existing City Code Section 10.52.030 involving the 10 ft. width of roadway, as measured from the centerline pavement marking. Mr. Schulte commented on the restricted parking area if someone lives on a triangle near intersections with regard to the 30 ft. setback. Motion to amend by substitute failed. Voting "no" -- all members of the governing body. Ms. Broyles moved to amend by substitute ordinance (dated 9-24-12), seconded by Ms. Ash. Upon inquiry, Mr. White advised the proposed substitute changes the definition of recreational vehicle to a more simplified definition, taken from the American National Standards Institute, and would read as follows: "... any vehicular-type unit that is primarily designed as a temporary living quarters for recreational, camping, or seasonal use; has its own motive power or is mounted on or towed by another vehicle; and is regulated by the National Highway Traffic Safety Administration as a vehicle or vehicle equipment." He stated other sections of the ordinance were the same as the substitute version recommended for approval at the Sept. 18th Public Services Committee meeting. Comments followed on safety concerns, particularly involving emergency vehicle response and accessible street width, and importance of the "sight triangle". Mr. Pierson moved to amend the proposed substitute by adding the following sentence at the end of Section 10.52.020, Prohibited in specified places, Subsection B. 4., seconded by Ms. Broyles: "Exception: driver's personal private driveway." Upon inquiry regarding the history of the current City Code restriction that does not allow parking within 5 ft. of either side of a driveway, Brian Kozak, Chief of Police, explained the distance provides safety to drivers' who are backing out of a driveway by having more vision of the area, and advised active enforcement of the provision is mostly the result of complaints received from an affected property owner. Motion to amend the substitute carried. Voting "yes" -- all members of the governing body. Discussion followed on the purpose of

the ordinance as initially introduced relative to safety vs. aesthetic issues; restriction of only being allowed to park in front of your own property; concern with curb painting of the 30 ft. intersection distance only in the Avenues and not other locations in the City; City Engineer's authority to restrict parking areas under other provisions of City Code, and the ordinance providing an improvement to address RV on-street parking concerns. During discussion, Mr. Beauheim advised curb painting of the 30 ft. distance in the Avenues is to assist with the amount of traffic/parking in the residential neighborhood during Frontier Days and other areas are not planned to be painted at this time due to the lack of funding resources. Motion to amend by substitute dated 9-24-12, as amended, carried. Voting "yes" -- all members of the governing body with the exception of Mr. Brown voting "no". Upon query, Chief Kozak provided information on enforcement procedures involving different potential violation scenarios, and clarified fines would be set through Municipal Court. It was noted the ordinance, if approved, will not be in effect until Feb. 1, 2013. Main motion as amended by substitute, as amended, carried. Voting "yes" -- all members of the governing body with the exception of Mr. Brown and Mr. Valdez voting "no". (#3957)

ORDINANCE - Vacating a Portion of the Right-of-Way of Bradley Avenue at the Intersection of Bradley Avenue and East 14th Street. Ms. Ash moved to approve on second reading, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body.

ORDINANCE - Pursuant to Section 2.2.1 Zoning Map Amendment, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map of the Unified Development Code, changing the zoning classification from MR-1 Medium-Density Residential Established District to MUB Mixed-Use Business Emphasis District for Block 16, Park Addition, Cheyenne, Wyoming (located between Richardson and Cosgriff Courts and between Ames Court and Dey Avenue). Ms. Ash moved to approve on second reading, seconded by Ms. Broyles. Upon inquiry, Casey Palma, Steil Surveying Services, agent for the applicant, explained the zone change request is to enable greater flexibility of uses for the property and stated potentially the building may be subdivided for use as office or educational spaces. He commented that certain uses may require administrative approval and some would be allowable under the MUB classification. In response to inquiry regarding concern with protection of the neighborhood involving certain types of allowable business uses, Jim Flesher, Planning Dept., advised certain uses may involve other restrictions and approvals pursuant to the Unified Development Code, and Matt Ashby, Planning Services Director, advised staff would provide additional information prior to the next meeting, if the ordinance moves forward, on scenarios involving potential types of uses that would be allowed vs. those requiring administrative or Board of Adjustment approval. In response to inquiry regarding parking relative to development of town homes on the northern portion of the site, Mr. Palma provided information on parking standards that would be met and referenced the conceptual site plan and parking options being considered. Comments followed in support of the "in-fill" redevelopment project which will transform a vacant lot and building into a viable use, and that proposed business use(s) should compliment the neighborhood. Motion carried. Voting "yes"-- all members of the governing body.

ORDINANCE - Pursuant to Section 2.2.1 Zoning Map Amendment, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map of the Unified Development Code, changing the Zoning Classification from MUB Mixed-Use Business Emphasis District to CB Community Business District for Lots 12-22, Block 656, Original City (AKA South Cheyenne Addition), Cheyenne, Wyoming (located at 504 Central Avenue). Ms. Ash moved to approve on second reading, seconded by Ms. Broyles. Upon inquiry, Jim Flesher, Planning Dept., provided information

on the zone change notification process to those in the area required by the Unified Development Code, and clarified the property owner applied for the zone change and any communications involving use of the property is between the property owner and owner of the current business on the site. He further advised a MUB zone does allow for a retail store but would not allow the same building design that is being proposed due to the setback distance necessary due to the floodplain and confirmed, upon inquiry, that the retail business proposed to be located on the site is a Family Dollar Store. Brandon Cammarata, Planning and Development Director, explained the requested zone change is consistent with the comprehensive plan; advised the area is located “at the tail end” of a MUB district and that surrounding blocks have changed over time to single use development, and noted a MUB zone has a maximum setback distance (generally 10 ft.). Discussion followed on the slope of the lot and setback distance relative to the floodplain under a CB zone. Dillon Tidwell, applicant representative, advised there are issues involving location of the building on the site relative to the setback and floodplain, and it is intended to have the site design compatible with the area and have the building more visible by facing Central Avenue. Motion carried. Voting “yes”-- all members of the governing body.

ORDINANCE - Pursuant to Section 2.2.1 Zoning Map Amendment, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map of the Unified Development Code, changing the Zoning Classification from MUB Mixed-Use Business Emphasis District to CB Community Business District for a Portion of Lot 2, Block 3, Plaza Del Range, Cheyenne, Wyoming (located at 3308 Dell Range Boulevard). Ms. Ash moved to approve on second reading, seconded by Ms. Broyles. Upon inquiry, Jim Flesher, Planning Dept., stated there are similar issues as discussed for the previous ordinance on the agenda (i.e. setback distances; floodplain) regarding the business site design proposed for the property and the request to re-zone. Motion carried. Voting “yes”-- all members of the governing body.

ORDINANCE - Creating Section 6.08.180 Feeding Geese and Ducks Prohibited, of Chapter 6.08, Animal Care and Control Regulations Generally, of Title 6, Animals, of the Code of the City of Cheyenne, Wyoming -- referred to Public Services Committee (sponsors -- Ms. Ash and Mr. Collins).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to submit a Beneficiary Claim form to the American Equity Investment Life Insurance Company of Des Moines, Iowa, for Death Benefits under Life Insurance Contract #018336, insuring the life of Sharon F. Tuck, deceased. Motion (per Consent Agenda) carried. (#5432)

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2013 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113. Motion (per Consent Agenda) carried. (#5433)

[CA] RESOLUTION - Authorizing submission of an application to the Wyoming Business Council, Business Ready Community Grant and Loan Program for funding through the Business Committed Grant Program for a Fuel Cell Data Plant -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Authorizing submission of an application to the State Loan and Investment Board for a Grant from the Transportation Enterprise Fund on behalf of the Governing Body of the City of Cheyenne/Cheyenne Transit Program, for the purpose of purchasing three 22 passenger replacement busses -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] Preliminary Plat for Chaplin Park Annex, a replat of Block 16, Park Addition, Cheyenne, Wyoming (located between Richardson and Cosgriff Courts and between Ames Court and Dey Avenue). Motion (per Consent Agenda) carried (acknowledge receipt).

[CA] Lease Agreement between the City of Cheyenne and Community Resource Center of Johnson County, to lease City-owned property located at 1900 East 18th Street. Motion (per Consent Agenda) carried (\$200.00/month - revenue to City). (#5909)

[CA] Contract between the City of Cheyenne and WINhealth Partners for City employee health coverage. Motion (per Consent Agenda) carried. (#5910)

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County School District No. 1 to provide services for students with disabilities for the 2012 - 2013 school year -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County School District No. 1 for counseling services for school referred students -- referred to Finance Committee.

Professional Services Agreement between the City of Cheyenne, Parks and Recreation Department, and Ayres Associates, Inc. for engineering and bid documents for Lake Minnehaha in Holliday Park, Remediation Phase I (2013 - 2014 State Land & Investment Board funding) -- referred to Finance Committee. Mr. Brown reported the item was reviewed under other items for the agenda at the Sept. 17, 2012 Finance Committee meeting and provisions of Title 2 of City Code had been met. Mr. Brown moved to approve in an amount not to exceed \$83,580.00, seconded by Mr. Spiker. Rick Parish, Parks and Recreation Director, explained the reason for requesting review of the item under other items for the agenda at Finance Committee involves a timing issue with the schedule originally submitted for design engineering which would have taken them out of the winter months for dredging of the lake, and stated dredging needs to be accomplished during the cooler winter weather. Upon inquiry, he provided information on the anticipated depth of the lake (8-12 ft.) when the dredging is completed, proposed solar or electric water recirculating system, and the three phases to the project, noting they are working on partnerships to provide some lake shore enhancements. Motion carried. Voting "yes" -- all members of the governing body. (#5911)

[CA] Memorandum of Understanding between the City of Cheyenne, Police Department, and the Town of Pine Bluffs, Wyoming, Police Department, for law enforcement extraterritorial assistance -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Police Department, and the City of Laramie, Wyoming, Police Department, for law enforcement extraterritorial assistance -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Metropolitan Planning Organization, and Ayres Associates, Inc. to prepare the Dell Range Corridor Study (Federal MPO funds, Federal Highway Safety Grant) -- referred to Finance Committee.

[CA] Consideration of Bid #R-2-13 for two new 2012-2013 ten yard dump trucks with spreader and

snow plows for the Street and Alley Division (2011-2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-3-13 for furnishing and installing miscellaneous Police Vehicle Equipment for the Cheyenne Police Department (State Land & Investment Board funding) -- referred to Finance Committee.

Transfer of Ownership and Transfer of Location for a retail liquor license application filed with the City Clerk's Office for Safeway Stores 46, Inc. d/b/a Safeway Store #2975, 305 Cole Shopping Center, Cheyenne, Wyoming (License currently held by Lambousis Revocable Trust, 112 W. 17th Street, Cheyenne, Wyoming). Carol Intlekofer, City Clerk, advised written notification had been received by the applicant that the application is being withdrawn. Upon inquiry with no objection raised by members of City Council, Mayor Kaysen announced the item was being withdrawn from the agenda at the request of the applicant.

Appointment of Dave Ohde to the Downtown Development Authority Board. Mr. Pierson moved to approve, seconded by Mr. Spiker. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Announcement was made of a Public Hearing to be held October 8, 2012 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming for a transfer of ownership for a restaurant liquor license application filed with the City Clerk's Office for Judi's Cajun Kitchen, LLC d/b/a Judi's Cajun Kitchen, 620 Central Avenue, Cheyenne, Wyoming (License currently held by Real Mexican Food, Inc., 620 Central Avenue, Cheyenne, Wyoming).

Under other business:

Eric Miller questioned the outer diameter of the traffic circle proposed for the roundabout to be constructed at the Pershing/Converse intersection pursuant to his inquiry of same at the Sept. 10th City Council meeting. Nathan Beauheim, Assistant City Engineer, offered his apology for not providing a response since the last meeting and advised he would furnish Mr. Miller with the information. Mr. Miller submitted a handout depicting a picture of the Little Ferry (New Jersey) traffic circle and expressed safety concerns for pedestrians crossing traffic/roundabout circles, commenting on his belief that the Pershing/Converse intersection could be better controlled by traffic lights. Mr. Miller also questioned the City's adoption of the International safety codes and stated that the word "international" to him means affiliation with the U.N. (i.e. United Nations). Mayor Kaysen advised that City representatives attend code conferences and provide recommendations on safety codes to be used, and that the International codes are utilized by several municipalities across the country.

Barbie Harrington commented on the following topics: Downtown Development Authority's proposed plans to relocate their downtown office and remodeling costs; meaning of eminent domain and the judicial process relative to the City's responsibility; repayment to Cheyenne Light, Fuel and Power (CLFP) customers due to recent awareness of the company's accounting error involving billing of the City's franchise fee and use of taxpayers' money, and recent street construction project near the Pershing/Snyder intersection relative to project pre-notification to businesses in the vicinity, reduced on-street parking availability, and alleged substandard asphalt placed by the contractor. Brad Harrington posed a question to Mayor Kaysen regarding the timing of his knowledge of the CLF&P

franchise billing error. Following verification of the content of the question, Mayor Kaysen stated he did not have knowledge of the matter until a few days prior to an article being published in the Wyoming Tribune-Eagle newspaper by way of a county resident presenting it to him in an email format. Upon inquiry by a Council member relative to the Pershing/Snyder street project, Nathan Beauheim, Assistant City Engineer, advised that WYDOT administered the construction project and provided information on WYDOT involvement regarding procedures for resolving any dispute with the contractor that may involve faulty work and/or warranty provisions. He noted the City, to date, has not yet accepted the project as complete and the asphalt issue is being reviewed.

City Attorney Dan White requested the governing body meet in executive session to discuss two litigation matters involving the City. Mr. Collins moved to meet in executive session, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body. Mayor Kaysen announced members would meet in executive session in Council Chambers, not open to the public; requested the City Attorney, City Clerk, and other staff as requested by the City Attorney, be present at the executive session, and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the executive session. (Clerk's Note: Executive session convened at 8:15 p.m. following a brief recess.)

There being no further business to come before the governing body prior to the executive session, the meeting was officially adjourned at 8:48 p.m. following closure of the executive session.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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